

The U.P. Sahkari Gram Vikas Banks Rules, 1971

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State of Uttar Pradesh - Act

The U.P. Sahkari Gram Vikas Banks Rules, 1971

UTTAR PRADESH

India

The U.P. Sahkari Gram Vikas Banks Rules, 1971

Rule THE-U-P-SAHKARI-GRAM-VIKAS-BANKS-RULES-1971 of 1971

Published on 20 August 1974

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The U.P. Sahkari Gram Vikas Banks Rules, 1971

Published vide Notification U.P. Gazette (Extraordinary) dated 20-8-1974

Chapter I

Preliminary

1.

Short title and commencement.

(1)

These Rules may be called the Uttar Pradesh Sahkari Gram Vikas Banks Rules, 1971.

(2)

They shall come into force with effect from the date of their publication in the Gazette.

2.

Definitions.

- In these rules unless there is anything repugnant in the subject or context -

(a)

"Act" means the Uttar Pradesh Sahkari Gram Vikas Banks Act, 1964;

(b)

"Bank" means the Uttar Pradesh Sahkari Gram Vikas Bank or a Sahkari Gram Vikas Bank as may be relevant from the reference;

(c)

"Defaulter" means a person who having borrowed money from the Uttar Pradesh Gram Vikas Bank on the security of his land has failed to make repayment on due date, of a loan or interest therein or an instalment thereof together with interest;

(d)

"Sale Officer" means a person (not below the rank of Group II Inspector by whatever designation called) authorised by the managing committee under Section 16 and includes a person referred to in clause (z) of Rule 2 of the Uttar Pradesh Co-operative Societies Rules, 1968;

(e)

"Section" means the section of the Act;

(f)

"Schedule" means the Schedule to these rules and references to Forms shall be construed as references to Forms set out in the Schedule;

(g)

Words and expressions not defined in these rules but defined in the Act, shall have the same meaning as assigned to them in the Act and the words and expressions not defined in the Act but defined in Uttar Pradesh Co-operative Societies Act, 1965 (UP. Act No. XI of 1966) for the time being in force in Uttar Pradesh or the rules framed thereunder shall have the same meaning assigned to them in the said UP. Co-operative Societies Act, 1965 and the rules framed thereunder.

Chapter II

3.

Issue of debentures.

- The total amount due on the debentures issued by the Board under sub-section (1) of Section 6 outstanding at any time shall not exceed the aggregate of the amounts mentioned in clauses (a) and (b) of sub-section (3) of Section 6 and 10 per cent of such aggregate.

4.

(1)

The maximum amount of guarantee given by the State Government under sub-section (1) of Section 8 may, if the State Government is satisfied that such an increase is justified and is necessary in the interest of the Uttar Pradesh Gram Vikas Bank be increased after -

(a)

the Board has made a request to the State Government for such an increase duly supported by sufficient reasons, and

(b)

a special recommendation to this effect is made to the State Government by the Trustee.

The maximum amount of the guarantee so increased by the state Government shall be notified in the Gazette from time to time.

(2)

Subject to the provisions of sub-section (3) of Section 8 and without prejudice to the guarantee already carried by earlier debentures in term of proviso to that sub-section the State Government may withdraw or restrict or modify the amount of the guarantee of principal and interest on debentures, where in the opinion of the State Government, the Uttar Pradesh Gram Vikas Bank has failed-

(a)

to observe the conditions of the Trust Deed;

(b)

to observe the provisions of the Act and the rules;

(c)

to exercise due care and caution in the proper verification of the title of mortgagors;

(d)

to maintain adequate security on the debentures issued; and

(e)

to observe the instruction of the Trustee to fulfil the obligation of the Bank to the holders of the debentures.

Chapter III

5.

Guarantee Fund.

(1)

With effect from such date as may be fixed the State Government may constitute a Guarantee Fund in accordance with the provisions of Section 9 of the Act. The Uttar Pradesh Gram Vikas Bank shall contribute to such fund annually within three months of the close of a co-operative year a sum at the rate of one paisa per hundred rupees of the loan advanced during the proceeding co-operative year.

(2)

Notwithstanding the provisions of sub-rule (1) when a Gram Vikas Bank is constituted and loan is advanced through such bank it shall contribute to the Guarantee Fund at the rate of half paisa per hundred rupees of loan advanced through it and the Uttar Pradesh Gram Vikas Bank may with the approval of the Registrar, reduce its contribution to the extent of the contribution made by the Gram Vikas Bank as aforesaid.

(3)

The State Government may also contribute to the Fund from time to time such amount as it may deem fit.

6.

[Maintenance of Fund and Deposit of interest earned.

[Substituted by Notification No.765-C(IFC) /XII-C-1Bh-71 dated 27th August, 1979.]

- The fund shall be maintained by the Finance Department of the Government of Uttar Pradesh in the Public Accounts Section of the State Accounts and all contributions to the fund and interest earned on investment made from the Fund shall be credited direct to the Fund].

7.

[Procedure, conditions and restrictions to meet losses out of the constituted of Guarantee Fund.

[Substituted by Notification No.765-C(IFC) /XII-C-1Bh-71 dated 27th August, 1979.]

- The losses on account of loans advanced by a Gram Vikas Bank on the security of mortgages not being fully recovered because of the following circumstances shall be met out of the Guarantee Fund constituted under Section 9:

(a)

Where the whole or substantial portion of the property of the mortgagor is destroyed or damaged or the rights in respect of his property are wholly or substantially extinguished because of natural calamities or any other reason beyond his control rendering him incapable of repaying the loan to the Bank.

(b)

Where despite due care and caution taken by the Uttar Pradesh Gram Vikas Bank or a Gram Vikas Bank the mortgagor's title duly verified by an officer not below the rank of an Assistant Registrar appointed by the Registrar is subsequently found to be defective:

Provided that no such loss shall be met unless the proposal is scrutinized and recommended by a committee of not more than five persons including the Chairman of the Uttar Pradesh Gram Vikas Bank and the Trustee constituted by the State Government for the purpose and the State Government is satisfied that the Bank is not in a position to meet the loss wholly or in part out of its own resources and that it is necessary for the stability of the Bank to meet such losses out of the Guarantee Fund].

Chapter IV

Procedure of Distraint and Sale of Produce of Mortgaged Land Including Standing Crops Thereon

8.

The managing committee of a bank may make an application to the Registrar under sub-section (1) of Section 15, in Form 1 through its Secretary or Branch Manager or Land Valuation Officer or whosoever is duly authorised for this

purpose by the managing committee.

9.

On the receipt of an application under Rule 8, the Registrar or any other person authorised by him in this behalf in writing shall if he is satisfied that the particulars entered in the application are correct and the applicant has deposited the required costs of distraint and sale on the scales indicated in Annexure to these rules, prepare or cause to be prepared a demand notice in triplicate in Form II. Two copies of such demand notice shall be forwarded to the sale officer concerned:

Provided that an application not accompanied by the costs of distraint and sale and a copy of the resolution of the managing committee authorising an officer under Rule 8 to sign such application, shall not be considered.

10.

The Sale Officer shall serve or cause to be served upon the defaulter the notice of demand by delivering a copy of the same to him or to any adult male member of his family at his usual place of residence or to his authorised agent, or when such service cannot be effected, by affixing a copy of the demand notice on some conspicuous part of his residence.

11.

If the notice of demand has been served on the defaulter and he fails to pay the amount due under the demand notice, the Sale Officer shall distraint the produce of the mortgaged land and shall immediately deliver to the defaulter a list of inventory of the property distrained and an intimation of the place, date and hour at which the distrained property shall be brought to sale in case the amount due is not paid before such date, and in any case shall also affix the list of inventory of the property distrained on the house where the defaulter ordinarily resides and endorse thereon the place where the property may be lodged or kept and also the place, date and hour at which the sale shall be held.

12.

The Sale Officer shall make proper arrangement for the custody and preservation of the distrained property during the interval between its distraint, and sale. The applicant bank or an officer of the Gram Vikas Bank concerned, if he is authorised in this behalf by it shall, if required by the Sale Officer, undertake the custody and preservation of property distrained. If standing crops or ungathered produce of the land belonging to a defaulter are distrained the State Officer may direct them to be sold when fit for reaping or gathering, or at his option, may at the cost of the defaulter cause them to be reaped or gathered in due season and stored in proper place until sold. The Sale Officer may, at the instance of the defaulter or of any person claiming an interest in such property, leave it in the Village or place where it was attached in the charge of such defaulter or person, if he enters into a bond in the form specified by the Registrar with one or more sureties as may be considered sufficient for the production of the property when required:

Provided that where the property seized is subject to speedy and natural decay or where the expense of keeping it in custody is likely to exceed its value, an earlier date may be fixed on which the Sale Officer may sell it unless the amount is sooner paid.

13.

No distraint under Rule 11 shall be made after sunset and before sunrise.

14.

It shall be lawful for the Sale Officer to force open any stable, cow-house, granary, godown, out house or other building and he may also enter any dwelling house, the outer door of which may be open and to break open the door of any room in such dwelling house, for the purpose of distraining the produce of the mortgaged land lodged therein, provided always that it shall not be lawful for such Sale Officer to break open or enter into any apartment in such dwelling house appropriated for the residence of women except as hereinafter provided

15.

When the Sale Officer may have reason to believe that the produce of the mortgaged land is lodged within a dwelling house the outer door of which may be shut or within any apartment appropriated for the residence of women which by custom or usage of the country is considered private the Sale Officer shall represent the fact to the Officer Incharge of the nearest police station. On such representation the Officer Incharge of the nearest police station shall send a police officer to the spot in whose presence the Sale Officer may force open the outer door of such dwelling house:

Provided that where it is necessary for the Sale Officer to enter into the apartments of women for the purpose of distraining the produce of the mortgaged land, which is believed to be deposited therein he shall enter into such apartments only in the presence of the police officer and at least one female witness of the locality after giving due

notice for retirement or removal of women and if the property sought for is found it shall be immediately removed by the Sale Officer from such apartment after which the apartments shall be left free to the women occupants.

16.

The Sale Officer shall, on the day previous to and on the day of sale cause proclamation of the time and place of the intended sale to be made by beat of drum in the Village in which the defaulter resides or the produce is kept and at such other place or places as the Sale Officer may consider necessary to give due publicity to the sale.

17.

If within fifteen days of the date of service of the demand notice on the defaulter he does not pay the amount for which the distraint was effected, the Sale Officer may sell in public auction to the highest bidder the distrained property or such part thereof as may, in his opinion be necessary to satisfy the demand together with the expenses of the distraint and sale:

Provided that after the distraint of standing crop or produce of the mortgaged land which is subject to the speedy and natural decay it shall not be necessary to allow the time of fifteen days to the defaulter to deposit the money due as indicated in the demand notice and the sale may be conducted earlier:

Provided further that it shall be open to the Sale Officer to decline to accept the highest bid where the price offered appears to be unduly low or for other adequate reasons:

Provided also that the Sale Officer may, in his discretion, adjourn the sale to a specified day and hour recording his reasons for such adjournment. Where a sale is so adjourned for a period longer than seven days, a fresh proclamation under the rules shall be made unless the defaulter consents to waive it.

18.

Cash payment of the price of the property shall be made at the time of sale and the purchaser shall not be permitted to carry away any part of the property until he has paid for it in full.

19.

If the purchaser fails to pay the purchase money, the property shall be re-sold and the proceeds of such re-sale shall be applied in the manner hereinafter provided.

20.

After the deduction of the expenses incurred in distraint and sale from the proceeds of sale the balance, if any, shall be applied to the discharge of the dues for which the distraint and sale were made. The surplus, if any, shall be delivered to the defaulter and he shall be given a receipt for the discharge of his liability, to the extent shown in the demand notice.

21.

Where the expenses incurred in connection with the distraint and sale of the produce of the mortgaged property under these rules exceed the expenses deposited by the Bank, such excess shall be deducted from the sale proceeds of the property sold or the moneys paid by the defaulter as the case may be and the balance, if any, shall be made available to the Bank.

22.

Where prior to the sale, a defaulter, or any person acting on his behalf or any person claiming through the defaulter an interest in the property distrained pays the full amount due including interest and other expenses incurred in connection with distraint and sale. The Sale Officer shall not proceed with the sale and shall release the property forthwith from distraint.

Chapter V

Procedure in the Sale of Mortgaged Property

23.

Where a person commits default in making payment of the mortgage money or any part thereof within one month of the issue of notice of demand, the managing committee or any person authorised by it in this behalf, shall take steps to bring the mortgaged property to sale in accordance with sub-section (2) of Section 16.

24.

[

[Substituted by Notification No.232-C(IFC) /XII-CI-Bh-80 = 74-dated 29-8-1977, published in U.P.Gazette, Part 1-Ka, dated 10th September, 1977, pages 2541-43.]

While taking steps for sale under Rule 23 the managing committee or any person authorised by it in this behalf shall give a notice in writing stating therein the amount claimed by the bank including expenses incurred by it in the service of

notice and the particulars of the property sought to be sold to all person referred to in clause (a) of sub-section (2) of Section 16, requiring them to pay the amount stated in the notice within one month of service of such notice].

25.

If the amount specified in the notice issued under Rule 24 is not paid within the period stated therein, the managing committee or any person authorised in this behalf shall seek permission from the Board for the sale of the mortgaged property specified in the notice.

26.

The Board shall within one month of the receipt of reference under Rule 25 invite objection regarding the proposed sale of the mortgaged property for which the Board shall issue notice to the mortgaged and any other person mentioned in clause (a) of sub- section (2) of Section 16, give them time not exceeding one month from the date of its service on them.

27.

The Board shall after the expiry of the period of notice mentioned in Rule 26 dispose of the objections, if any, after hearing the objectors.

28.

[

[Substituted by Notification No.232-C(IFC) /XII-CI-Bh-80 = 74-dated 29-8-1977, published in U.P.Gazette, Part 1-Ka, dated 10th September, 1977, pages 2541-43.]

Where the Board rejects the objections received under Rule 27 or where no objection is received, it shall authorise the Sale Officer for the sale of the mortgaged property, provided that such sale not take place before the expiry of three months from the date of service of notice issued under Rule 24].

29.

(1)

Not less than fifteen days before the date fixed for sale a proclamation of sale shall be notified by the Sale Officer by advertisement with full details in a newspaper having circulation in that area and by affixing one copy at some conspicuous part of the mortgaged property itself and at two or more of the following offices:

(i)

Block Development Office concerned;

(ii)

Tehsil concerned;

(iii)

The office of the Gram Vikas Bank or the branch of the Uttar Pradesh Gram Vikas Bank concerned as the case may be;

(iv)

The office of the District Assistant Registrar, Co-operative Societies and the Recovery Officer of the district concerned.

(2)

The proclamation shall state the time and place of sale and specify as fairly and accurately as possible -

(a)

the property to be sold;

(b)

the encumbrance to which the property is liable;

(c)

the revenue payable in respect thereof;

(d)

the amount for the recovery of which Sale is ordered

(e)

every other thing which Sale Officer considers material for a purchaser to know in order to judge the nature and value of the property;

Provided further that a notice of such proclamation shall also be given to the defaulter.

(3)

Proclamation containing the particulars mentioned in sub-rule (2) shall also be made by the Sale Officer on two consecutive days previous to the date of sale and on the day of sale, prior to the commencement of the sale, by the beat

of drum in the Village where the mortgaged property to be sold is situated.

30.

(1)

When any mortgaged property is sold under these rules, the sale shall be subject to prior encumbrances on the property, if any. Encumbrance certificate from the Registration Department for the period of not less than twelve years prior to the date of mortgage under which it is proposed to be sold shall be furnished to the Sale Officer by the Gram Vikas Bank concerned.

(2)

The sale shall be by public auction to the highest bidder provided that it shall be open to the Sale Officer to decline to accept the highest bid where the price offered appears to be unduly low or for other adequate reasons, and provided also that the Sale Officer may, in his discretion, adjourn the sale to some other specified day and hour, recording his reasons for such adjournment. Where a sale is so adjourned to period longer than seven days a fresh proclamation shall be issued unless the mortgagor consents in writing to waive it.

31.

It shall be open to the Sale Officer to put the mortgaged land to sale in one or more lots as he may consider advisable and only as much portion of the mortgaged land shall be sold as may be considered by the Sale Officer sufficient to discharge the amount due with interest and expenses of sale.

32.

Where the property sold is in the occupancy of a person entitled to occupy the same under Section 22 and the sale certificate has been granted in respect of it, the Sale Officer shall, on the application of the purchaser and after notice to such other person, put the auction purchaser into possession of such property by affixing a copy of sale certificate in conspicuous place on the property and proclaiming to the occupant by beat of drum or other customary mode at some convenient place, that the right, title and interest of the mortgagor have been transferred to the purchaser.

33.

[

[Substituted by Notification No.232-C(IFC) /XII-C-I-Bh.-80,74, dated 29-6-1977, Published in U.P. Gazette, Part 1-Ka, dated 10th September, 1977.]

(1)

The highest bidder whose bid may be accepted, shall deposit 25% of the auction money at the spot with the Sale Officer immediately after the fall of the hammer and announcement of the acceptance of the bid, while the rest of the amount shall be deposited by the bidder with concerned branch of the bank in cash or through Bank Draft within fifteen days from the date of conclusion of the auction.

(2)

Where the highest bidder fails to pay the amount of 25 per cent of the auction money, he shall have no right to the property or any sum paid by him as part payment of the auction money and the Sale Officer shall have right to accept the second highest bid provided that the amount of the second highest bid provided that the amount of the second highest bid is not less than 95 per cent of the highest bid or lesser than the amount claimed by the Bank including expenses incurred. Such second highest bidder whose bid maybe accepted shall deposit 25 per cent of auction money at the spot with the Sale Officer immediately after announcement of the acceptance of his bid, while rest of the amount shall be deposited by the bidder with concerned branch of Bank in cash or through Bank Draft within fifteen days from the date of conclusion of the auction.

(3)

On the request in writing of the purchaser, the Board may extend the period of deposit of the balance amount of 75 per cent mentioned in sub-rules (1) and (2) by 7 days if it is satisfied that due to unavoidable reasons the purchaser could not deposit it in time.

(4)

Where the second highest bidder also fails to pay the amount of 25 per cent of the auction money he shall have no right to the property or any sum paid by him as part payment of the auction money.

(5)

Where the highest bidder fails to pay the amount of 25 per cent of the auction money and the second highest bid is not accepted or, where the second highest bid is accepted under sub- rule (2) and the second highest bidder fails to pay the

amount of 25 per cent of the auction money the property shall be re- auctioned.]

34.

Where the Gram Vikas Bank at whose instance the property is sold is the purchaser, the Sale Officer shall dispense with the requirement of Rule 33. The Sale Officer shall then enter the satisfaction of the mortgage money in full or part, as the case may be:

Provided that in case the purchase money exceeds the amount of the claim, the reminder of the amount shall be paid to the defaulter, subject to the provisions of Rule 41 within fifteen days of the confirmation of the sale.

35.

Where the purchaser at the auction sale has deposited 25 per cent of the auction money in pursuance of Rule 33 and fails to pay the balance of the price as required therein, he shall forfeit the money paid as well as all claims to the property or to any part of the sum for which the property at any time subsequently be sold. The forfeited money shall after defraying all costs, charges and expenses of sale be made over to the bank.

36.

Every resale of mortgaged property in default of payment of the purchase money within the period allowed for such payment, shall be made after the issue of a fresh proclamation in the manner and for the period hereinbefore laid down in these rules for sale.

37.

Where prior to the sale the mortgagor or any person action on his behalf or any person claiming an interest in the mortgaged property tenders payment of the full amount due including interest and other cost, as well as charges and expenses incurred in connection with the sale of the property, the Sale Officer shall not proceed with the sale.

38.

The proceeds of every sale effected under Section 16 of the act, shall be applied first in payment of all costs, charges and expenses incurred in connection with the sale or attempted sales, secondly, in payment of any or all interest due on account of the mortgage in consequence whereof the mortgaged property was sold and thirdly in payment of the principal due on account of the mortgage including costs and charges incidental to the recovery.

If there remains any resident for the proceeds of sale, the same shall be paid to the mortgagor if he is alive, and if he is dead, to his successors in interest.

If there remains any resident for the proceeds of sale, the same shall be paid to the mortgagor if he is alive, and if he is dead, to his successors in interest.

39.

[

[Substituted by Notification No.232-C (IFC) /XII-C-I-Bh-80-74, dated 29-8-1977, published in U.P. Gazette, Part-1-Ka, dated 10th September, 1977.]

(1)

Where the mortgaged property has been sold, the person either owning such property or holding an interest therein by virtue of title acquire before sale, may apply to have the sale set aside on his depositing with the bank concerned-

(a)

a sum equal to five per cent of the actual amount deposited by purchaser for payment to the purchaser, and

(b)

the amount of arrears specified in the proclamation of sale for the recovery of which sale was ordered together with interest therein, and the expenses of sale and other costs due in respect of such amount, less the amount which may since the date of such proclamation have been received by the Gram Vikas Bank.

(2)

If an application for setting aside the sale accompanied by a deposit as referred to in sub-rule (1), is made within thirty days of the date of sale, the managing committee on reference made by the Sale Officer shall set aside the sale and make or cause to make payment to the auction purchaser the amount deposited by him together with a sum of five per cent of the amount so deposited:

Provided that if more person than one have made deposit and applied under this sub-rule, the application of the first depositor shall be entertained.]

40.

On the expiry of thirty days from the date of sale, if no application to have the sale set aside is made or if such

application has been made and rejected, the Board shall make an order confirming the sale, whereupon the sale shall become absolute.

41.

[

[Substituted by Notification No.1443-C(IFC) /XII-C-I-Bh-71-76, dated 9-10-1985, published in U.P. Gazette (Extraordinary) Part IV, Section (Kha), dated 9th October, 1985.]

Whenever the sale of the mortgaged land is not confirmed, the purchase money deposited shall be returned to the purchaser along with interest at the rate prevailing in the State Bank of India for Saving Bank Account during the period of such deposit.]

Provided that no interest shall be allowed to the purchaser if the sale is not confirmed for any fault of the purchaser.

42.

The Sale Officer shall, on the conclusion of the sale, make a report in Form III to the Registrar and the Gram Vikas Bank concerned regarding the result of the sale.

43.

[

[Substituted by Notification No.232-C(IFC) /XII-C-I-Bh-80-74 dated August 29, 1977, published in U.P. Gazette, Part I-Ka, dated 10-9-1977.]

Where a sale of the mortgaged property has become absolute and the sale proceeds have been received full by the Gram Vikas Bank on application from the purchaser accompanied by the amount required for general stamp, the Uttar Pradesh Gram Vikas Bank shall grant a sale certificate to the purchaser in Form IV certifying the property sold, the sale price, the date of sale, the name of the person who at the time of the sale is declared to be the purchaser and the date on which the sale become absolute original copy of sale certificate shall be given to the purchaser and a copy of the same shall be forwarded to sub-Registrar appointed under the Indian Registration Act, 1908. Upon the production of such certificate, the Sub-Registrar within the limits of whose (sic)]

[Chapter V-A]

[Chapter V-A containing Rules 44 45; inserted by Notification No. 1577-C-(IFC) /XII-C-1-Bh-71-76, dated 22nd Jan. 1990, published in U.P. Gazette (Extraordinary), Part IV, Section (kha), dated 22nd Jan. 1990.]

Financial Assistance and Sureties

44.

Conditions for Financial assistance on furnishing sureties.

- A person desirous of securing financial assistance from the Bank on furnishing sureties under sub-section (2) of Section 21-B of the Act shall be provided with the desired assistance, if he-

(i)

furnishes two sureties to the satisfaction of the Bank for the required financial assistance;

(ii)

executes a declaration of first charge on the project created from the financial assistance and other assets belonging to him on stamp paper of requisite value;

(iii)

furnishes a Guarantee Deed executed by sureties in favour of the Bank guaranteeing the repayment in case of his default.

45.

Recovery of arrears of loans secured on furnishing sureties.

(1)

The Registrar may on an application made in this behalf for the recovery of arrears of any loan or any instalment thereof on furnishing a statement and accounts in respect of such loans and after making such enquiries, if any, as he thinks fit, issue a certificate for recovery of the amount due.

(2)

A certificate issued by the Registrar under sub-rule (1) shall be final and conclusive proof of the dues which shall be recoverable as arrear of land revenue from the sureties and the borrower jointly and severally.

Annexure I

(See Rule 9)

Sale of fees

Rs.

(a)

For an application for the distraint and sale of the produce of the mortgaged land at the rate of Rs. 1 per hundred rupees subject to a maximum of rupees one hundred.

2.50

(b)

For each notice under the proceedings

2.50

(c)

For the distraint of movable property of each defaulter

2.50

(d)

For beat of drum for publicity prior to sale per day for each sale

2.50

(e)

Sale fee for each sale

2.50

Form I

(See Rule 8)

1. Name of defaulter.

2. Amount due for which distraint and sale is sought.

Principal

Rs. P.

Interest

Costs

Total

3. Due date of the instalment

4. Particulars of the property:

(a)

location and specification

(b)

Whether standing crop

or

Produce lying in field

or

in the store with exact location.

5. Value of the property.

Signature of Secretary /Branch Manager/

Land Valuation Officer U.P.

Rajya Sahakari Bhumi Vikas Bank Ltd.

Certified that the Above statement of accounts is correct on the basis of records maintained in Bank.

Signature

Designation

Form II

(See Rule 9)

Demand Notice should specify

1. Name of the defaulter.....s/o.....with address.

2. Amount due-

Rs. P.

(a) Principal

(b) Interest

(c) Costs

Total

Signature

Dated

Copy to-

(1)

.....Recovery Officer.

(2)

.....Defaulter.

Dated

Signature

Designation.

Form III

(See Rule 42)

To,

The Registrar,

The undersigned submits the following information for further necessary action:

1. Name of the Land Development Bank.

2. Name of the borrower member.

3. The amount which is due against the member:

(a)

Principal

(b)

Interest

(c)

Penal interest

(d)

Total

4. The plots sold for recovery of overdue amount.

5. Name of Village, Pargana, Tehsil.

6. Khasra Number and Area.

7. The amount received from the sale of the above plots.

8. The date on which sale affected.

9. The name of the purchaser with parentage and full address.

Signature of Sale Officer.

[Form IV]

[Substituted by Notification No. 232-C (IFC) /XII-C-1-Bh-80-74 dated 29-8-1977, Published in U.P. Gazette part 1 Ka, dated 10-9-1977.]

(See Rule 43)

Certificate of Sale of Land

This is to certify that Sri..... s/o..... resident of..... P.O..... District..... has been declared the purchaser at a sale by public auction on the..... day of....., 19....., of the land described below and that the said sale has become absolute. The purchaser shall be entitled to have possession over the auctioned land from the date of issue of sale certificate.

1. Sale certificate no.

2. Name of the auction purchaser (with full address).....

3. Date of sale.....

4. Date of sale becoming absolute.....

5. Sale price.....

6. Name (s) of defaulter loanee member (with full address)

.....s/o.....

.....s/o.....

.....s/o.....

.....s/o.....

7. Description of the property sold in public auction.

Serial No.

Name of Village

Pargana

Tehsil

District

Kind of Tendency right

Khasra No.

Area

1

2

3

4

5

6

7

8

Given under my hand and seal of the office. This....., day of....., 19....

Designation and Seal.

Copy to the Sub-Registrar (Registration), district..... Dated....., 197.....

Designation and Seal.

Copy also to be [Gram Vikas Bank]

[Substituted by U.P. Act 19 of 1994.]

Designation and Seal.

Related AI tags, queries and research notes

Translation